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Case Number: 23TRCV00645 Hearing Date: August 4, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – August 4, 2026

Calendar No.

PROCEEDINGS

Grace

Dagan Barreto v. Gardena Hospital, LP, et al.

23TRCV00645

1. Gardena Hospital, LP, et al.'s Motion for Summary
Adjudication

TENTATIVE RULING

Gardena Hospital, LP, et al.'s Motion for Summary
Adjudication is denied.

Background

Plaintiff filed the Complaint on March 3, 2023. Plaintiff

alleges the following facts. Plaintiff is a paralyzed and mute adult woman. Plaintiff was sexually assaulted by a staff member during her admission to Gardena Hospital. Plaintiff alleges the following causes of action: 1. Dependent Adult Abuse/Neglect; 2. Violation of Civ. Code § 51.9; 3. Negligence Per Se – Violation of Welfare & Institutions Code Section 15630; 4. Premises Liability; 5. Breach of Fiduciary Duty; 6. Fraud – Concealment; 7. Negligence; 8. Sexual Battery.

Objections

Plaintiff's objections A, B, and 1 to 31 to the declaration of Davina Leary, R.N. are overruled.

Plaintiff's objections A, B, and 1 to 39 to the declaration of Trish Higgins are overruled. As to the declaration of Trish Higgins, it appears that it was provided primarily to show the lack of ratification on the part of Defendant. While ultimately Plaintiff was not required to provide evidence to refute this declaration, the Court cannot state that the presentation of the declaration was improper or irrelevant in the context of Defendants' attempt to provide facts to meet its initial burden and to shift the burden to Plaintiff under CCP § 437c(p)(2).

Motion

for Summary Adjudication

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005)

128 Cal. App. 4th 1510, 1519.) A

defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” CCP § 437c(p)(2). “Once the defendant . . . has met that

burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” CCP § 437c(p)(2). “If the

plaintiff cannot do so, summary judgment should be granted.” Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

“A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” Code Civ. Proc., § 437c(p)(1).

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Defendants move, pursuant to

Code of Civil Procedure § 437c, for an order granting summary adjudication of the individual causes of action of dependent abuse against Plaintiff.

Specifically, Defendants move for summary adjudication of the following issues:

“1. Summary adjudication of

Plaintiff’s first cause of action for dependent abuse should be granted because no triable issue of material fact exists as to the essential elements of abuse or neglect, and Defendant is entitled to adjudication as a matter of law.

2. Summary adjudication of

Plaintiff’s first cause of action for dependent abuse should be granted because no triable issue of material fact exists as to the essential elements of

recklessness, oppression, fraud or malice, and Defendant is entitled to adjudication as a matter of law.

3. Summary adjudication of

Plaintiff's first cause of action for dependent abuse should be granted because no triable issue of material fact exists as to the essential element of causation, and Defendant is entitled to adjudication as a matter of law.

4. Summary adjudication of

Plaintiff's first cause of action for dependent abuse should be granted because no triable issue of material fact exists as to the essential element of corporate ratification, and Defendant is entitled to adjudication as a matter of law." (Notice of Motion, p. 2, line 19 to p. 3, line 8).

Thus, as can be gleaned from the above, Defendants actually only move for summary adjudication of one cause of action but provide four different reasons why the first cause of action should be adjudicated in their favor.

First Cause of Action for Dependent
Adult Abuse/Neglect

Welf. & Inst. Code, §
15610.07 states:

"(a) "Abuse of an elder or a
dependent adult" means any of the following:

(1) Physical abuse, neglect,
abandonment, isolation, abduction, or other treatment with resulting physical
harm or pain or mental suffering.

(2) The deprivation by a
care custodian of goods or services that are necessary to avoid physical harm
or mental suffering.

(3) Financial abuse, as
defined in Section 15610.30."

Welf. & Inst. Code, §

15610.57 states:

“(a) “Neglect” means either
of the following:

(1) The negligent failure of
any person having the care or custody of an elder or a dependent adult to
exercise that degree of care that a reasonable person in a like position would
exercise.

(2) The negligent failure of
an elder or dependent adult to exercise that degree of self care that a
reasonable person in a like position would exercise.

(b) Neglect includes, but is
not limited to, all of the following:

(1) Failure to assist in
personal hygiene, or in the provision of food, clothing, or shelter.

(2) Failure to provide
medical care for physical and mental health needs. A person shall not be deemed
neglected or abused for the sole reason that the person voluntarily relies on
treatment by spiritual means through prayer alone in lieu of medical treatment.

(3) Failure to protect from
health and safety hazards.

(4) Failure to prevent
malnutrition or dehydration.

(5) Substantial inability or
failure of an elder or dependent adult to manage their own finances.

(6) Failure of an elder or
dependent adult to satisfy any of the needs specified in paragraphs (1) to (5),
inclusive, for themselves as a result of poor cognitive functioning, mental
limitation, substance abuse, or chronic poor health.

(c) Neglect includes being

homeless if the elder or dependent adult is also unable to meet any of the needs specified in paragraphs (1) to (5), inclusive, of subdivision (b).”

Welf. & Inst. Code, §

15610.63 states, in relevant part:

““Physical abuse” means any of the following:

(a) Assault, as defined in Section 240 of the Penal Code.

(b) Battery, as defined in Section 242 of the Penal Code.

(c) Assault with a deadly weapon or force likely to produce great bodily injury, as defined in Section 245 of the Penal Code.

(d) Unreasonable physical constraint, or prolonged or continual deprivation of food or water.

(e) Sexual assault, that means any of the following:

(1) Sexual battery, as defined in Section 243.4 of the Penal Code.”

Welf. & Inst. Code, §

15657 states:

“If it is proven by clear and convincing evidence, or by a preponderance of the evidence pursuant to Section 15657.02, that a defendant is liable for physical abuse as defined in Section 15610.63, neglect as defined in Section 15610.57, or abandonment as defined in Section 15610.05, and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse, the following shall apply, in addition to all other remedies otherwise provided by law:

(a) The court shall award to

the plaintiff reasonable attorney's fees and costs. The term "costs" includes, but is not limited to, reasonable fees for the services of a conservator, if any, devoted to the litigation of a claim brought under this article.

(b) The limitations imposed by Section 377.34 of the Code of Civil Procedure on the damages recoverable shall not apply. However, the damages recovered shall not exceed the damages permitted to be recovered pursuant to subdivision (b) of Section 3333.2 of the Civil Code.

(c) The standards set forth in subdivision (b) of Section 3294 of the Civil Code regarding the imposition of punitive damages on an employer based upon the acts of an employee shall be satisfied before any damages or attorney's fees permitted under this section may be imposed against an employer."

"In order to obtain the remedies available in section 15657, a plaintiff must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct. The latter three categories involve "intentional," "willful," or "conscious" wrongdoing of a "despicable" or "injurious" nature." *Delaney v. Baker* (1999) 20 Cal.4th 23, 31-32. "To recover the enhanced remedies available under the Elder Abuse Act from a health care provider, a plaintiff must prove more than simple or even gross negligence in the provider's care or custody of the elder." See *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 405.

Defendant has met its initial burden to show that Plaintiff's cause of action has no merit by showing that one or more elements of the cause of action cannot be established. Therefore, the burden shifts to Plaintiff to provide specific facts to show that a triable issue of material fact exists as to her cause of action. CCP § 437c(p)(2). Plaintiff met her burden to provide specific facts to show that a triable issue of material fact exists as to her cause of action. (Plaintiff's Separate Statement of Additional Facts and Supporting Evidence, 77-84, 91).

Plaintiff was admitted to

Gardena Hospital after suffering a stroke. Plaintiff's cognitive function was intact, but she could no longer speak and become a quadriplegic. She was able to communicate with an eye gazer device. Plaintiff alleges that she was sexually assaulted by an employee of Defendants - Bobby Quiroz – a certified nursing assistant.

Defendants argue that

summary adjudication of the first cause of action is warranted because it “cannot be held responsible, or liable, for a spontaneous act from one of its employees, that was entirely unavoidable, and unpredictable. Defendant did not, and could not, have had any advance notice, or expectation that Quiroz would commit such an act, given that Defendant, prior to employing Quiroz, appropriately, and thoroughly, vetted Quiroz, and upon employing him, appropriately oriented, trained, and supervised Quiroz.” (Memorandum of Points and Authorities, p. 8, lines 15-20).

An employer may be held

vicariously liable for torts committed by an employee within the course and scope of employment. See *Lisa M. v. Henry Mayo Newhall Mem. Hosp.* (1995) 12 Cal.4th 291, 296.

However, an “employer will not be held liable for an assault or other intentional tort that did not have a causal nexus to the employee's work.” *Id.* at 297. Defendants argue that it cannot be held vicariously liable for the alleged acts of Quiroz because the alleged acts were outside the scope of employment and did not have a causal nexus to his employment. Thus, Defendant contends that it cannot be held vicariously liable for his alleged conduct. *Myers v. Trendwest Resorts, Inc.* (2007) 148 Cal.App.4th 1403, 1432.

“[A] possessor of land who

holds it open to the public for entry for business purposes is subject to liability to members of the public while they are upon the land for such a purpose, for physical harm caused by the accidental, negligent or intentionally harmful acts of third persons ... and by the failure of the possessor to exercise reasonable care to (a) discover that such acts are being done or are likely to be done, or (b) give a warning adequate to enable the visitors to avoid the harm, or otherwise to protect them against it. . . Liability will normally be imposed in circumstances where the possessor has reasonable cause to anticipate the misconduct of third persons.” *Peterson v. San Francisco Community College Dist.* (1984) 36 Cal.3d 799, 807 (internal citations and quotations omitted). “Heightened foreseeability is satisfied by a showing of prior similar criminal incidents

(or other indications of a reasonably foreseeable risk of violent criminal assaults in that location) and does not require a showing of prior nearly identical criminal incidents.” *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 245.

“What is apparent from all these cases analyzing defendants' liability for the criminal conduct of a third party is that foreseeability is the crucial factor (*Delgado*, supra, 36 Cal.4th at p. 237, 30 Cal.Rptr.3d 145, 113 P.3d 1159) and that—no matter whether a heightened or lesser degree of foreseeability was required and no matter whether the actual crime committed or only similar conduct needed to be foreseen—foreseeability must be measured by what the defendant actually knew. None of these cases has held that a defendant owed a duty to take steps to prevent or respond to third party crime on the basis of constructive knowledge or information the defendant should have known. We are not aware of any case involving liability for third party criminal conduct that has held that a special relationship creates a duty to investigate or that has charged a defendant with making forecasts based on the information such an investigation might have revealed.” *Margaret W. v. Kelley R.* (2006) 139 Cal.App.4th 141, 156 (emphasis added). Defendants argue that the alleged acts of Quiroz were unforeseeable and that Defendants did not have knowledge or constructive knowledge that Quiroz would commit these acts.

Defendants also argue that there is no evidence that they caused Plaintiff's alleged injuries. Defendants contend that Plaintiff has no evidence that the incident occurred due to any of Defendant's actions or inactions, and that Defendants could not be liable for this unforeseeable incident. (Decl., Davina Leary, R.N., ¶¶ 8-11). Defendants also argue that they did not ratify the conduct of the alleged perpetrator. (Decl., Trish Higgins).

In addition, Defendants argue that Plaintiff has no evidence that Defendant met the standards to meet the elements of dependent adult abuse or neglect namely conduct that is reckless, malicious, oppressive, or fraudulent. Welfare and Institutions Code section 15610.57. Defendants provided a declaration from an expert registered nurse who states that Defendants met the applicable standard of care, at all times, and did not cause or contribute to Plaintiff's alleged injuries. (Decl., Davina Leary, R.N., ¶¶ 8-15).

Contrary to Defendant's arguments Plaintiff does not need to satisfy the elements of Welfare and Institutions Code § 15657 to prevail on a dependent adult abuse cause of action and to establish a defendant's liability. Section 15657 is only a remedy enhancement provision. The requirements of Section 15657 only apply when a Plaintiff seeks enhanced remedies such as attorneys' fees and punitive damages. In fact, the statute specifically states that the enhanced remedies apply "in addition to all other remedies otherwise provided by law," confirming that ordinary remedies exist independently of Section 15657. 3294. See *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771; See also *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396.

Thus, Plaintiff need only provide evidence to show the existence of a triable issue of material fact as to the elements of abuse or neglect and causation to defeat the motion for summary adjudication as "issues" 2 and 4 as framed by Defendant (again as mentioned above which are not specifically issues as authorized by CCP § 437c(f)(1) but reasons why the first cause of action should be summarily adjudicated) are not required to be proven by Plaintiff at this stage of the proceedings.

Plaintiff argues that Defendants' liability is not necessarily based on vicarious liability from the acts of Quiroz, but, on Defendants' direct liability. Plaintiff submits the expert declaration of Kenneth P. Rothfield, M.D., M.B.A., C.P.E., C.P.P.S.

Dr. Rothfield opines that Defendants' own direct actions constitute dependent adult abuse and neglect in the following manner:

"Plaintiff's limitations required heightened and individualized safety planning and protections beyond those used for ordinary hospitalized patients by Defendants, but they failed to do so." (Id at 29). "It is my opinion that Defendants violated the standard of care and neglected Plaintiff by failing to protect Plaintiff from health and safety hazards including, but not limited to, the foreseeable risk of sexual abuse or exploitation, through their failure to provide adequate specialized safeguards for Plaintiff and failure to implement sufficient safety measures for Plaintiff when she was a patient at MHG in Room 309 of the Med Surg 3 Unit on March 6-7, 2022. Widely accepted approaches for patients with profound

communication and mobility limitations include direct observation, alternative communication methods, environmental modifications, or other individualized safeguards. Examples include placement in a room close to the nurse's station, alternative means of observation, a sitter, or allowing a support person to stay with the patient when appropriate. The record does not reflect implementation of comparable measures prior to the event." (Id. at 33-34).

"[T]he only alleged safety measures implemented by MHG's staff for Plaintiff's safety prior to the time of the subject incident was (1) that the nursing staff was conducting "hourly rounding" and (2) that Plaintiff was provided with a call light in her room. It is my opinion that relying on these so-called safety measures was not sufficient to protect Plaintiff from health and safety hazards and, is further evidence of Defendants' violations of the standard of care[.]" (Id. at 35) "Furthermore, the call light that was provided to Plaintiff was useless to her due to her paralysis. Defendants knew that Plaintiff was physically unable to use the call light, as confirmed in Plaintiff's medical records. Therefore, MHG's plan to utilize a call light as a safety measure and means to communicate with Plaintiff was an approach that it knew would fail." (Id.)

Finally, Dr. Rothfield opines that "[t]he Defendants' failure to provide measures to protect Plaintiff from health and safety hazards commensurate with Plaintiff's vulnerability and to provide her with the necessary safety measures and interventions as discussed above constitute a violation of the standard of care and neglect, and each was a substantial factor in causing the subject incident by Mr. Quiroz and Plaintiff's related harm." (Id. at 42).

Thus, Plaintiff submitted competent evidence, in the form of an expert declaration, to show that Defendants neglected Plaintiff and that the neglect caused or contributed to Plaintiff's alleged injuries. Plaintiff's evidence does not rely on vicarious liability based on the torts of Quiroz, but, instead based on Defendants' own alleged acts of neglect. In addition, as noted above, Plaintiff is not required to provide evidence of recklessness, malice, oppression, or fraud, and/or ratification to meet the standards to obtain enhanced remedies under Section 15657. The competent declaration of Plaintiff's expert is sufficient to meet Plaintiff's burden to show the existence of a triable issue of material fact as to Defendants' alleged neglect and causation of injuries.

Thus, Defendants' motion for
summary adjudication of the first cause of action is denied.

Plaintiff is ordered to give notice of this ruling.